

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Diana Murray	Team: Team # 3	CCRB Case #: 201106272	☒ Force ☒ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Friday, 05/13/2011 8:16 PM	Location of Incident: § 87(2)(b) in between § 87(2)(b) and § 87(2)(b)	18 Mo. SOL 11/13/2012	Precinct: 41
Date/Time CV Reported Sat, 05/14/2011 8:14 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Sat, 05/14/2011 8:14 PM

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Scott Berger	10210	948659	PBBX
2. SGT Edgar Padilla	02988	895127	PBBX

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POF Veronica Guachichullca	02343	949066	PBBX
2. POM Manish Sharma	10192	949656	PBBX

Officer(s)	Allegation	Investigator Recommendation
A . POM Scott Berger	Discourtesy: PO Scott Berger spoke obscenely to § 87(2)(b)	A . Unsubstantiated
B . POM Scott Berger	Force: PO Scott Berger used physical force against § 87(2)(b)	B . Exonerated
C . SGT Edgar Padilla	Discourtesy: Sgt. Edgar Padilla spoke obscenely to § 87(2)(b)	C . Unsubstantiated
§ 87(2)(g), § 87(4-b)	§ 87(2)(g), § 87(4-b)	§ 87(2)(g), § 87(4-b)

Case Summary

On May 14, 2011, § 87(2)(b) filed this complaint with the CCRB via phone (Enc. 3a-3b). On May 16, 2011, § 87(2)(b) filed a duplicate of this complaint with the Internal Affairs Bureau (IAB) via phone, generating IAB log 11-22240 (Enc. 4).

On May 13, 2011, at approximately 8:16 p.m., § 87(2)(b) was reversing his vehicle on § 87(2)(b) in between § 87(2)(b) and § 87(2)(b) in the Bronx, when he was stopped by officers. The following allegations resulted:

- **Allegation A – Discourtesy:** PO Scott Berger spoke obscenely to § 87(2)(b)
- **Allegation C – Discourtesy:** Sgt. Edgar Padilla spoke obscenely to § 87(2)(b)
§ 87(2)(g)
As such, it is recommended that **Allegations A and C** be closed as **unsubstantiated**.
- **Allegation B – Force:** PO Scott Berger used physical force against § 87(2)(b)
§ 87(2)(g)
It is therefore recommended that **Allegation B** be closed as **exonerated**.
- § 87(2)(g), § 87(4-b)
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On May 25, 2011, contact was established with § 87(2)(b) via phone, and the mediation and investigation processes were described to him. § 87(2)(b) chose not to mediate § 87(2)(b).

Results of Investigation

Civilian Statements

Complainant/Victim: § 87(2)(b)

is a § 87(2)(b), § 87(2)(b) *Hispanic male with light facial hair.*

IAB Log 11-22240 (Enc. 4)

On May 16, 2011, § 87(2)(b) filed a complaint with IAB, stating that he sustained a black and blue bruise on his leg from PO Berger slamming the car door on his leg. § 87(2)(b) stated that a van with eight other officers and a sergeant arrived and one of the eight officers stated, “Keep it fucking moving.” § 87(2)(g)
in his CCRB testimony, he stated he *did not* sustain a bruise, nor did he mention a van full of officers using profanity against him.

CCRB Testimony

§ 87(2)(b) was interviewed at the CCRB on May 18, 2011 (Enc. 6a-6e). § 87(2)(b) did not have a bruise on his left leg at the time of the CCRB interview.

On May 13, 2011, at approximately 8:16 p.m., § 87(2)(b) was driving on § 87(2)(b) in between § 87(2)(b) and § 87(2)(b) in the Bronx, looking for a spot to park his car. He circled the block approximately three times. While driving around the block the first time, § 87(2)(b) made eye-contact with PO Scott Berger, who he identified by viewing his badge during the interaction, and who § 87(2)(b) described as a 5'8"-5'9" tall, 180 pound uniformed white male in his 20's. During § 87(2)(b)'s third time circling the block, he passed a parked car and stopped exactly two cars ahead of the parked car, which was exiting the parking spot. § 87(2)(b) reversed his vehicle two car lengths and slowly parallel parked in the spot in which the car had just exited from. § 87(2)(b) turned his vehicle off and unbuckled his seat belt.

PO Berger, who was traveling on foot, approached § 87(2)(b)'s vehicle from approximately 4 car lengths away and immediately stated, "Hey asshole, it's illegal for you to do that." § 87(2)(b) asked, "Illegal for me to reverse, officer?" § 87(2)(b) provided his license and registration at the request of PO Berger. § 87(2)(b) began to get out of the vehicle, by opening the driver's side door and placing his left leg on the ground. PO Berger slammed § 87(2)(b)'s left leg in between the car door and the seat. Prior to slamming the door, PO Berger did not give § 87(2)(b) any verbal directions. § 87(2)(b) had already been parked, turned the ignition turned off, and had his seat belt unbuckled by the time that PO Berger approached, so he did not think that getting out of his vehicle would be perceived as threatening. After slamming his leg in the car PO Berger stated, "Shut the fucking door, you're getting out of your car, I didn't tell you to get out of your car." § 87(2)(b) replied that there was no reason for PO Berger to have done that, and noted that PO Berger became visibly nervous. PO Berger stated, "Don't fucking go nowhere." § 87(2)(b) put his leg back in the car and shut the door.

Sgt. Edgar Padilla, who was identified via the investigation and who § 87(2)(b) described as a 5'9" tall, 230 pound Hispanic male officer in his mid 40's – early 50's, approached § 87(2)(b)'s vehicle and stated, "I don't like the way you was fucking talking to my officer." § 87(2)(b) replied, "I don't have a problem with none of you guys, I like the job you guys are doing, you're finally cleaning up the streets, but I'm not one of the bad guys." Sgt. Padilla began trying to intimidate § 87(2)(b) by 'eyeballing him recklessly,' and making statements such as, "Yeah, take a look at my fucking badge" in an intimidating tone. At that point, a marked police van with approximately three uniformed male officers and one uniformed female officer arrived, causing § 87(2)(b) to state, "Wow, you brought the whole precinct over here" to which Sgt. Padilla replied, "No asshole, we only have eight cops here for you," and counted them off for § 87(2)(b). § 87(2)(b) alleged that he did not 'feed into Sgt. Padilla's aggression' and was calm for the entirety of the incident, replying to his questions with a "No sir" and "Yes sir".

PO Veronica Guachichulca, who § 87(2)(b) described as a Hispanic female, did not interact with him during the incident. PO Guachichulca issued § 87(2)(b) a summons for § 87(2)(b) and PO Berger informed § 87(2)(b) that he was free to leave. § 87(2)(b) did not sustain a bruise from the car door, nor did he seek medical treatment for any injuries.

NYPD Statements:

Subject Officer: OFFICER SCOTT BERGER

PO Scott Berger is a § 87(2)(b) white male with brown hair and hazel eyes. PO Berger was assigned to a Patrol Borough Bronx foot post (9A) within the confines of the 41st Precinct, from 5:30 p.m. on May 13, 2011, to 2:05 a.m. on May 14, 2011. PO Scott Berger was working with PO Veronica Guachichulca and both officers were in uniform and supervised by Sgt. Edgar Padilla.

Memo Book (Enc. 7a-7d)

PO Berger does not have any official memo book entries regarding the stop of § 87(2)(b).

The fly page of PO Berger's memo book states, § 87(2)(b) § 87(2)(b) Reversed up § 87(2)(b) from § 87(2)(b) to § 87(2)(b) Summons served by PO Guachichullca § 87(2)(b)."

CCRB Testimony

PO Berger was interviewed at the CCRB on June 21, 2011 (Enc. 8a-8b). On May 13, 2011, at approximately 8:16 p.m., PO Berger and PO Guachichullca were walking on § 87(2)(b) which is encompassed by foot post 9A, when they observed a vehicle, from less than 5 feet away, reversing down a one way street. Upon seeing the officers, the driver of the vehicle, identified by PO Berger later during the interaction as § 87(2)(b) stopped his vehicle in this middle of the street. PO Berger and PO Guachichullca continued walking on § 87(2)(b) and § 87(2)(b) began to reverse again, all the way to the corner. At this point, § 87(2)(b) had reversed his vehicle the length of a city block, and did not appear to be parking, as there were no parking spots available on that block of § 87(2)(b) PO Berger approached the driver's side window of § 87(2)(b)'s vehicle, which was now parked in the middle of the road near an intersection, and asked him what he thought he was doing. At no point did PO Berger state, "Hey asshole, it is illegal for you to do that."

Upon being approached, § 87(2)(b)'s demeanor was annoyed and angry, particularly because he had been stopped. § 87(2)(b) spoke in a loud tone of voice and maintained that he had done nothing wrong, stating "This is my neighborhood, these are my streets, I know how to drive." PO Berger and § 87(2)(b) began arguing about how far § 87(2)(b) reversed his vehicle, with § 87(2)(b) stating that he only reversed two car lengths, and PO Berger claiming that § 87(2)(b) reversed an entire city block. PO Guachichullca stood silently at the passenger's side of the vehicle. Sgt. Padilla and PO Manish Sharma, who was identified via the investigation, arrived at the incident in a marked RMP shortly after PO Berger initiated the stop. PO Berger asked § 87(2)(b) for his ID, and § 87(2)(b) became argumentative, and did not provide his ID right away. After providing his ID to PO Berger, PO Berger stood at the rear of § 87(2)(b)'s vehicle and started to write the summons. § 87(2)(b) opened his driver's side door, and because PO Berger did not know § 87(2)(b)'s intentions, he closed the door of the vehicle. § 87(2)(b) stated, "Why did you have to do that?" § 87(2)(b) did not try to get out of the vehicle, nor did he have his foot on the ground when PO Berger closed the door. While closing the door, § 87(2)(b) did not try to interfere by putting his leg or arm in the way, nor were any of § 87(2)(b)'s limbs struck while PO § 87(2)(b) closed the door. At no point during the interaction did PO Berger state, "Shut the fucking door, I didn't tell you to get out of your car," or "Don't fucking go nowhere."

Sgt. Padilla exited the vehicle and spoke to § 87(2)(b) but PO Berger does not recall the context of their conversation. PO Berger did not hear Sgt. Padilla state, "I don't like the way, you were fucking talking to my officer," or "Yes, take a look at my fucking badge." No other officer interacted with § 87(2)(b) for the duration of the stop and PO Berger does not recall additional units responding to the incident location.

Subject Officer: SERGEANT EDGAR PADILLA

Sgt. Edgar Padilla is a § 87(2)(b) Hispanic male officer. Sgt. Padilla worked as an Operation Impact patrol supervisor from 5:15 p.m. on May 13, 2011, to 2:12 a.m. on May 14, 2011. Sgt. Padilla and his operator, PO Manish Sharma, were assigned to a marked RMP and working in uniform.

Memo Book (Enc. 9a-9b)

At 8:20 p.m., Sgt. Padilla noted that he was inspecting post 929A: PO's Guachichullca and PO Berger.

CCRB Testimony

Sgt. Padilla was interviewed at the CCRB on July 14, 2011 (Enc. 10a-10b). On May 13, 2011, Sgt. Padilla was waved over to an incident in which two foot post officers, PO Guachichullca and PO Berger, had stopped a motor vehicle. Sgt. Padilla had been riding in a patrol vehicle on § 87(2)(b) when he observed the foot post officers. Upon arriving, PO Berger informed Sgt. Padilla that the individual, identified via the investigation as § 87(2)(b) reversed his vehicle the length of one city block. Sgt. Padilla did not observe the moving violation. Upon arriving, Sgt. Padilla observed § 87(2)(b) acting belligerent toward PO Berger by refusing to give PO Berger his information and questioning the stop. Sgt. Padilla did not see § 87(2)(b) attempt to get out of the vehicle at any point, nor did he witness PO Berger slam the door against § 87(2)(b)'s leg. § 87(2)(b) did not complain of any injuries, nor did Sgt. Padilla observe any injuries on § 87(2)(b). § 87(2)(b) was using his phone during the interaction and PO Berger had to instruct § 87(2)(b) to get off of his phone.

Sgt. Padilla approached the driver's side window and asked § 87(2)(b) to provide his information an additional time. PO Sharma exited the police vehicle but did not interact with § 87(2)(b) or approach § 87(2)(b)'s vehicle. Sgt. Padilla cannot recall whether any additional footpost officers arrived, nor did he observe a police van arrive at the scene of the incident.

Sgt. Padilla did not hear PO Berger state to § 87(2)(b) "Shut the fucking door, you're getting out of the car, and I did not tell you to get out of the car" or "Don't fucking go nowhere." Sgt. Padilla could not hear any of PO Berger's and § 87(2)(b)'s conversation. Sgt. Padilla does not recall the first thing that he said to § 87(2)(b) but at one point Sgt. Padilla had to tell § 87(2)(b) to calm down, and that he should give PO Berger his documents as PO Berger requested. Sgt. Padilla did not state to § 87(2)(b) "I don't like the way you were fucking talking to my officer," or, "Yeah, take a look at my fucking badge." Sgt. Padilla does not recall § 87(2)(b) making any statements regarding the number of police officers that responded to the incident, and at no point did Sgt. Padilla or any other officer state, "No asshole, we only have eight cops here for you."

Sgt. Padilla had grounds for arresting § 87(2)(b) at this point because he was refusing to comply with a lawful order by refusing to hand over his documents. Sgt. Padilla believes that he informed § 87(2)(b) of this, but does not recall the exact statement. Sgt. Padilla does not believe that he warned him of his potential of being arrested in a threatening manner. Once PO Berger and PO Guachichullca issued § 87(2)(b) the summons, Sgt. Padilla left in the RMP.

Witness Officer: OFFICER VERONICA GUACHICHULLCA

PO Veronica Guachichullca is a § 87(2)(b) Hispanic female with long brown hair and brown eyes. PO Guachichullca was assigned to a Patrol Borough Bronx foot post (9A), within the confines of the 41st Precinct, from 5:30 p.m. on May 13, 2011, to 2:05 a.m. on May 14, 2011, with PO Scott Berger. Both officers were in uniform.

Memo Book (Enc. 11a-11c)

Late Entry for 8:16 p.m.: 96 served to defendant § 87(2)(b) for § 87(2)(b). Defendant first observed at the corner of § 87(2)(b) and § 87(2)(b) summons served at the corner of § 87(2)(b) and § 87(2)(b).

Summons (Enc. 12)

On May 13, 2011, at 8:16 p.m., PO Guachichullca issued § 87(2)(b) summons number § 87(2)(b) for § 87(2)(b).

CCRB Testimony

PO Guachichullca was interviewed at the CCRB on June 21, 2011 (Enc. 13a-13b). On May 13, 2011, at approximately 8:15 p.m., PO Berger and PO Guachichullca observed a vehicle reverse at a medium-to-high rate of speed one-half of a block, beginning at § 87(2)(b) and § 87(2)(b) in the Bronx. The driver of the vehicle, identified by PO Berger as § 87(2)(b), stopped his vehicle upon seeing the officers. Less than one minute later, § 87(2)(b) continued to reverse for the second half of the length of the block, stopping at the intersection of § 87(2)(b) and § 87(2)(b) in the Bronx. PO Guachichullca and PO Berger decided to approach § 87(2)(b)'s vehicle to inform him that he was violating traffic law, and PO Guachichullca was also concerned about § 87(2)(b) driving fast near the playground at the intersection.

After approaching § 87(2)(b)'s vehicle, which was parked in the middle of the street, PO Berger had to request that § 87(2)(b) provide his ID more than two times. PO Guachichullca did not hear PO Berger state, "Hey asshole, it is illegal for you to do that." Eventually, PO Berger obtained his ID and provided it to PO Guachichullca, who began writing the summons for § 87(2)(b) at the rear of the vehicle. At this point, PO Berger and § 87(2)(b) were arguing, and an RMP parked behind § 87(2)(b)'s vehicle, containing Sgt. Padilla and PO Manish. PO Guachichullca could not recall if there was a third officer in the RMP or if additional officers arrived.

While writing the summons, PO Guachichullca observed § 87(2)(b) open the door of the vehicle and try to get out. PO Guachichullca heard PO Berger instruct § 87(2)(b) not to get out of the vehicle, but could not see the whole interaction, including PO Berger shutting the vehicle door, because she was standing at the rear of the passenger's side of the vehicle. At no point did PO Berger state, "Shut the fucking door, I did not tell you to get out of your car," or "Don't fucking go nowhere." PO Guachichullca did not witness the door make contact with any of § 87(2)(b)'s limbs, nor did she hear the door close. PO Guachichullca does not recall any specific statements § 87(2)(b) made after PO Berger shut the door, other than him protesting the reasons for which he had been stopped. § 87(2)(b) did not complain or injuries.

Sergeant Padilla approached the driver's side of § 87(2)(b)'s vehicle and spoke to him briefly; however, PO Guachichullca could not hear the conversation because she was still standing near the rear passenger's side of the vehicle, on the phone to run a check on § 87(2)(b)'s license. PO Guachichullca did not hear Sgt. Padilla state, "I don't like the way you was fucking speaking to my officer." PO Guachichullca handed the summons to § 87(2)(b) and left the interaction.

NYPD Documents

41st Precinct Roll Call (Enc. 14a-14b)

The 41st Precinct Roll Call for May 13, 2011, confirms that Sgt. Padilla was the Patrol Supervisor and that PO Guachichullca and PO Berger were assigned to a footpost.

Summons for Incident and Disposition

- On July 22, 2011, The New York State Department of Motor Vehicles responded to the Freedom of Information Law (FOIL) request, indicating that they did not possess records in response to summons number § 87(2)(b) (Enc. 15a-15b).

Status of Civil Proceedings

- § 87(2)(b) has not filed a Notice of Claim with the City of New York as of July 22, 2011 with regard to the incident (Enc. 16).

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilians CCRB History

- This is the first CCRB complaint filed by § 87(2)(b) (Enc. 1).

Subject Officers CCRB History

- PO Scott Berger has been a member of the service for 1 year and there are no substantiated CCRB allegations against him (Enc. 2a)
- Sgt. Edgar Padilla has been a member of the service for 22 years and there are no substantiated CCRB allegations against him (Enc. 2b-2c).

Conclusion

Allegations Not Pleaded

When § 87(2)(b) filed this complaint with the CCRB he stated that Sgt. Padilla threatened to arrest him. § 87(2)(b) did not make this allegation when he filed a complaint with IAB a couple days later, during his phone statement, or during his CCRB statement. § 87(2)(g)

Similarly, § 87(2)(b) alleged that eight officers traveling in a marked police van stated, “Keep it fucking moving,” but failed to mention this allegation during his CCRB statement. § 87(2)(g)

Identification of Subject Officers

When filing his complaint, § 87(2)(b) provided PO Berger’s name and command. During PO Berger’s CCRB statement, he testified that Sgt. Padilla responded to the incident. Both officers acknowledged interacting with § 87(2)(b)

Investigative Findings and Recommendations

Allegation A – Discourtesy: PO Scott Berger spoke obscenely to § 87(2)(b)

Allegation C – Discourtesy: Sgt. Edgar Padilla spoke obscenely to § 87(2)(b)

§ 87(2)(b) alleged that PO Berger used profane statements throughout the interaction, including, “Hey asshole, it is illegal for you to do that”, “Shut the fucking door” and “Don’t fucking go nowhere.” § 87(2)(b) also alleged that Sgt. Padilla interjected, “I don’t like the way you were fucking talking to my officer,” “Yeah, take a look at my fucking badge,” and “No

asshole, we only have eight officers here for you.” PO Berger denied making the aforementioned statements and PO Guachichullca and Sgt. Padilla denied hearing PO Berger make profane statements. Sgt. Padilla also denied using profanity when interacting with § 87(2)(b) and PO Berger could not recall the context of their conversation. While § 87(2)(b) and Sgt. Padilla were speaking, PO Guachichullca was running § 87(2)(b)’s information via her cell phone, and thus could not hear their conversation.

§ 87(2)(g)
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] It is therefore recommended that **Allegations A and C** be closed as **unsubstantiated**.

Allegation B – Force: PO Scott Berger used physical force against § 87(2)(b)

§ 87(2)(b) alleged that PO Berger slammed his left leg in the car door. PO Berger acknowledged shutting the vehicle’s door to prevent § 87(2)(b) from exiting the vehicle, but noted that § 87(2)(b)’s leg was not caught between the vehicle and the door. PO Guachichullca testified that she witnessed § 87(2)(b) attempting to get out of the vehicle, even after PO Berger had commanded him to remain inside, but did not witness § 87(2)(b)’s leg slammed in the closing door. Sgt. Padilla did not witness § 87(2)(b) attempt to exit the vehicle, nor did he witness PO Berger shut the door of the vehicle.

In *People v. Forbes* 705 NYS2d 197 (2000), the defendant was ordered to stay in the vehicle while officers’ ran his information, and at one point, it was necessary for an officer to shut the door of the defendant’s vehicle to enforce this command. In *People v. Forbes* (2000), the Court found that public’s interest and safety outweighed the defendant’s right to be free from arbitrary interference, as exemplified in this statement issued by the judge, “If the degree of intrusion engendered by a police order to exit a lawfully stopped vehicle is considered de minimis, likewise is a police order for an occupant to remain in the vehicle” (Enc. A-H). § 87(2)(g)

[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] It is therefore recommended that **Allegation B** be closed as **exonerated**.

§ 87(2)(g), § 87(4-b)
[REDACTED]
[REDACTED]

[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Team: 3

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Investigator: _____ Diana P. Murray _____
Signature Print Date

Supervisor: _____
 Title/Signature Print Date

Reviewer: _____
 Title/Signature Print Date

Reviewer: _____
 Title/Signature Print Date